

ALITO, J., dissenting

an unclothed person with the anatomy of a male in a confined and sensitive location such as a bathroom or locker room can cause serious psychological harm.⁴⁴

Under the Court’s decision, however, transgender persons will be able to argue that they are entitled to use a bathroom or locker room that is reserved for persons of the sex with which they identify, and while the Court does not define what it means by a transgender person, the term may apply to individuals who are “gender fluid,” that is, individuals whose gender identity is mixed or changes over time.⁴⁵ Thus, a person who has not undertaken any physical transitioning may claim the right to use the bathroom or locker room assigned to the sex with which the individual identifies at that particular time. The Court provides no clue why a transgender person’s claim to such bathroom or locker room access might not succeed.

A similar issue has arisen under Title IX, which prohibits sex discrimination by any elementary or secondary school and any college or university that receives federal financial assistance.⁴⁶ In 2016, a Department of Justice advisory warned that barring a student from a bathroom assigned to individuals of the gender with which the student identifies constitutes unlawful sex discrimination,⁴⁷ and some lower

⁴⁴ Brief for Defend My Privacy et al. as *Amici Curiae* 7–10.

⁴⁵ See 1 Sadock, *Comprehensive Textbook of Psychiatry*, at 2063 (explaining that “gender is now often regarded as more *fluid*” and “[t]hus, gender identity may be described as masculine, feminine, or somewhere in between”).

⁴⁶ Title IX makes it unlawful to discriminate on the basis of sex in education: “No person in the United States shall, on the basis of sex, be excluded from participation in, be denied the benefits of, or be subjected to discrimination under any education program or activity receiving Federal financial assistance.” 20 U. S. C. § 1681(a).

⁴⁷ See Dept. of Justice & Dept. of Education, *Dear Colleague Letter on Transgender Students*, May 13, 2016 (Dear Colleague Letter), <https://www2.ed.gov/about/offices/list/ocr/letters/colleague-201605-title-ix-transgender.pdf>.